

PROCUREMENT QUOTATION FORM (INVITATION)

TITLE RFQ-5/03/2026- CQURFQ-26-4-DFM - ROK TAFE Consolidation Stg.2 – Design and Construct

By accepting to participate in this process and/or responding to this Invitation, a Supplier is deemed to have accepted the Terms and Conditions that regulate this Invitation and the processes outlined in it. If a Supplier is unable or unwilling to agree to such terms, it must return this Invitation and any/all related documents (including, but not limited to, its' Schedules, templates or addendums) to CQU immediately.

A- **About CQUniversity Australia ("CQU"):** <https://www.cqu.edu.au/about-us>

B- Invitation – Background: The objective of this Invitation is:

CQU is inviting shortlisted contractors to submit a Tender for the design and construction of the ROK TAFE Consolidation Stage 2 Project (the Project). Project details are included at Appendix A – Scope of Requirements and Specifications.

C- Documentation

- a. Scope of Requirements and Specifications: Schedule 1
- b. Selection Criteria and Weighting: Schedule 2
- c. Any other Significant Documentation: Schedule 3
- d. Agreement (Terms and Conditions): Schedule 4
- e. Supplier Acceptance to Participate: Schedule 5
- f. Social Innovation and First Nations Enterprise Questionnaire: Schedule 6

D- Closing

- a. Date (dd/mm/yyyy): Thursday 9 April 2026
- b. Time (24 hour): 1400 / 2.00 pm
- c. Lodgment by: VendorPanel

E- Contacts

- a. CQU contact regarding **specifications** and **technical** matters:
 1. Name Tenneil Knowles
 2. Division Directorate of Facilities Management
 3. Title Project Administration Officer
 4. Email dfmcentral@cqu.edu.au
 5. Telephone 07 4923 2720
 6. Time 9:00 am to 4:00 pm
- b. CQU contact regarding **price** and **contract terms & conditions**: pat-requests@cqu.edu.au

F- Supplier response:

- a. Must be clear, concise and in English.
- b. To the extent that CQU requests Suppliers to provide pricing information, all prices contained within that information must be quoted with and without the inclusion of Australian Goods and Services Tax ("GST") (if applicable) and must be in Australian dollars (\$AUD).
- c. If more than one response is lodged, only the last response will be accepted.
- d. **Any requests to amend the proposed terms and conditions of the Invitation must be submitted with the tender response and before the Invitation close date and time.** Any requests to amend the proposed terms and conditions after the close date of the Invitation will cause the Response to be considered non-compliant with the tender and reassessed accordingly.

G- Requirements to be a conforming offer

To be a Conforming Offer, the offer must:

- a. be received by the closing date and time;
- b. be received in the format and method described in item D of this header;
- c. be open for the minimum Offer Validity Period;
- d. satisfy all mandatory requirements;
- e. respond to all sections of Schedules 4, 5, 6 and 7;
- f. review any associated documents referred to in the Contract Details; and
- g. be from an Offeror shortlisted through the 2025 EOI process. |

H- Rules of engagement

By accepting to participate in this process and/or responding to this Invitation, a Supplier is deemed to have understood and accepted that:

- a. Responses to this Invitation found to contain viruses or harmful code will be excluded from consideration.
- b. The Supplier is responsible to ensure the uploaded file(s) are valid and not corrupt. Any Responses to the Invitation received corrupt will be excluded from consideration.
- c. CQU reserves the right to discontinue this process, including negotiations with any Supplier(s) at any time and for any reason.
- d. The Supplier Acceptance to Participate (Schedule 5), submission of a response or any other step related to this Invitation and respective selection does not constitute a legally binding obligation on CQU to acquire, in the present or future circumstances, any goods or services from any Supplier(s) who respond.
- e. The notification that a response was selected does not constitute a contractual commitment. No Supplier shall be deemed to have been contracted until a contract has been formally executed.
- f. A contract is a legally binding obligation only when executed by a duly authorised delegate of CQU and the Supplier(s).
- g. CQU reserves the right not to be bound by any standard terms or conditions, including, but not limited to, documentation, statements, suggestions and alternatives issued by any Supplier during the selection process.
- h. The Supplier(s) will not make any public statement, provide or share any information in relation to this Invitation or otherwise of any Invitation released by CQU, without the prior written approval of CQU.
- i. All costs and expenses incurred by the Supplier in the preparation and lodgement of a response, as well expenses incurred in the participation of eventual interviews and demonstrations necessary to conclude the selection process (including independent professional advice, legal, financial and taxation advice), are to be borne by the Suppliers unless otherwise agreed in writing by CQU.
- j. All costs related to proof of concept are to be borne by the Suppliers unless otherwise agreed in writing by CQU.
- k. To the maximum extent permitted by law, neither CQU nor its employees, advisers or agents will in any way be liable for any loss, claim or damage incurred by Suppliers or an entity in submitting a response or participating in this selection process, arising out of or in connection with this Invitation.
- l. The Supplier has not relied on any express or implied warranty or representation made by, or on behalf of, CQU, other than as expressly contained in this Invitation or an addendum to this Invitation issued by CQU.
- m. The Supplier has not received improper assistance from any CQU staff member.
- n. CQU may alter and re-run this process at any time and for any reason;
- o. CQU may change the structure or timing of this Invitation at any time and for any reason; and may invite additional Suppliers to submit a response at any time and for any reason.
- p. The Suppliers must not:
 - i. Make false, misleading or deceptive claims or statements;
 - ii. Make contact with (other than as permitted above) any CQU staff member;
 - iii. Canvass, receive improper assistance from, or attempt to improperly influence, any CQU staff member;
 - iv. Engage in collusive tendering or any other anti-competitive or unethical conduct with CQU staff or another vendor;

- v. Make changes in the documentation provided by CQU; or
- vi. Bypass or disregard the authority of the staff assigned by CQU as responsible for this Invitation process.
- vii. Be in breach of any labour laws or standards in the jurisdiction in which they operate.

The non-compliance with the terms and conditions above will be assessed at the discretion of the CQU selection team and shall disqualify the participant.

- q. If, at its discretion, CQU considers that a question/answer is relevant to other Suppliers so as to better prepare their response, the answer/questions will be forwarded to all other participants.

I- CQU's rights

- a. Ownership of Invitation responses:
 - i. All responses shall become the property of CQU on lodgement. Suppliers shall retain ownership of Intellectual Property in the submissions provided that CQU is entitled to use and copy the submissions as necessary for the purposes of its Invitation processes, including the proper evaluation of responses.
- b. Ownership of Invitation material:
 - i. This Invitation (including any Schedule, template or addendum) remains the property of CQU. Suppliers are permitted to use the material of this Invitation only for the purposes of preparing their Invitation response and, where applicable, negotiating the terms of an agreement with CQU.
 - ii. All copyright and other intellectual property rights contained in this Invitation are and remain vested in CQU and any third party who has given CQU permission to incorporate them in this Invitation.
- c. Refinement of statement of objectives and general requirements:
 - i. CQU may use Invitation submissions to further refine its processes.
- d. Confidential Information
 - i. Subject to this clause d, CQU undertakes to keep confidential any confidential information provided to CQU by Suppliers as part of their Invitation response.
 - ii. CQU may, without notifying any vendor, disclose or allow the disclosure of, at any time, any information provided by Suppliers, including their Invitation response:
 - a. To CQU's employees and officers solely in order to evaluate or otherwise assess the Invitation response;
 - b. To CQU's internal management personnel for purposes related to the Invitation process;
 - c. Where the information is authorised or required by law to be disclosed; or
 - d. Where the information is already in the public domain, other than as a result of a disclosure by CQU.
 - iii. Suppliers are required to detail in their response to the Schedules any information they consider to be Confidential Information and the reasons why the information should be protected.
 - iv. CQU may obtain information about the supplier relevant to the evaluation criteria that may be held by any Government Department or Instrumentality and take the information into account in assessing the offer.
- e. CQU may publish information about the Invitation Process and any resulting Contract on the [Queensland Contracts Directory](#), where required or recommended by the Queensland Procurement Policy.

J- Governing law

The laws of the State of Queensland, Australia, govern this Invitation. CQU and each respondent/Supplier submits to the non-exclusive jurisdiction of the Courts of that State and courts with appellate jurisdiction over such Courts.

K- Offer Validity Period

Offers must remain open and capable of being accepted by the Customer for a minimum period of **<<120>>days**.

Schedule 1 - Scope of Requirements and Specifications

|Refer Appendix A – Scope of Requirements and Specifications |

Schedule 2 – Selection Criteria and Weighting

[Refer Appendix A – Scope of Requirements and Specifications]

Schedule 3 – Any other Significant Documentation

Appendix A - Scope of Requirements and Specifications (READ AND KEEP)

Appendix B - Contract (READ AND KEEP)

Appendix C - DSM (READ AND KEEP)

Appendix D - 60% Design Package (READ AND KEEP)

Appendix E - Grant Deed (READ AND KEEP)

Appendix F - Asbestos Reports (READ AND KEEP)

Appendix G - University Calendars 2026 and 2027 (READ AND KEEP)

Appendix H - Schedules (COMPLETE AND RETURN)

Appendix I - Pricing Schedules (COMPLETE AND RETURN)

Appendix J - Departures Table (COMPLETE AND RETURN)